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Provision of November 14, 2024
Register of provisions
No. 707 of November 14, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of
personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018,
containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU)
2016/679";

HAVING REGARD TO the complaint submitted pursuant to Article 77 of the Regulation by Ms. XX,
who reported a violation of the rules on the protection of personal data by the "Pietro Zangheri" nursing
home;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation No. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREMISE

1. The initiation of the procedure.

With the complaint submitted to this Authority on 09/11/2021, pursuant to Article 77 of the Regulation,
Ms. XX, through her lawyer Attorney XX, complained of a violation of the rules on the protection of
personal data by the "Pietro Zangheri" nursing home, her employer, stating that, following the periodic
visit conducted at Medoc s.r.l. (company responsible for health surveillance pursuant to Legislative
Decree No. 81/2008), she was issued a "temporary unfitness judgment for the position until the
completion of the COVID vaccination plan (...)". This certificate was transmitted in its entirety to the
employer, who, having become aware of the information regarding her vaccination status, suspended
her from service.

With the note dated 06/12/2022, the Office made a request for information to the nursing home
pursuant to Article 157 of the Code, aimed in particular at ascertaining whether the procedure provided
for by Article 4 of Decree-Law No. 44/2021 had been activated, which provides for specific methods of
verifying the vaccination status of healthcare workers and those performing activities in healthcare
facilities.

With the note dated 04/01/2023, the nursing home provided its response stating that:

- "the undersigned Entity has implemented the procedures provided for by Article 4 of Decree-Law No.
44/2021, as far as it is concerned";
- "Regarding the visit of 25.8.2021 and the subsequent medical fitness certificate of 28.8.2021, the
Entity did not acquire nor did it request to acquire information on the vaccination status of the
complainant, having not requested the competent doctor or others (...) to acquire from her information
regarding her COVID-19 vaccination status and/or to receive communication and/or information and/or
certificate attesting to the administration or not of the COVID-19 vaccine (...)";
- "Finally, it is specified that this Entity did not learn from the competent AUSL about the absence of
vaccination of the aforementioned (...)".

For the above reasons, the Office proceeded to notify the nursing home, on 14/02/2023, of the act
initiating the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the

violation of Article 9, paragraph 2, of the Regulation, for having carried out a processing of so-called special data relating to the complainant in the absence of the conditions of legitimacy.

With the note dated 08/03/2023, the party submitted its defensive writings, pursuant to Article 18 of Law No. 689/1981, stating that:

- following the issuance of Decree-Law No. 44/2021, it had transmitted to the regional health authority the list of names of healthcare and health-related operators employed at its facility;
- "in the following September, the AUSL, in concert with the professional orders and registers, communicated to the structures and also to this Entity the names of non-compliant healthcare personnel (doctors and nurses). For healthcare-related operators, there was no communication";
- On 16/09/2021, the competent doctor drafted an integration of the Biological Risk Assessment Document for COVID risk. He subsequently summoned all employees for a fitness visit related to COVID risk and drafted the consequent fitness and unfitness certificates";
- "It is specified that the nursing home did not request the competent doctor to verify, acquire, or process the health data of the worker, having limited itself to receiving as a recipient ex lege the certificate from the competent doctor (...)"

2. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.

Following the examination of the documentation produced and the statements made by the party during the procedure, it is noted that, unless the fact constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable pursuant to Article 168 of the Code. It has been established that the nursing home processed so-called special data relating to the complainant in the absence of conditions of legitimacy.

has taken action based on it.

To this end, it should be clarified, in general terms, that Legislative Decree No. 81 of April 9, 2008 (regarding the regulation of health and safety protection in the workplace) identifies the role of the competent physician as autonomous from that of the employer, providing for specific and distinct obligations as well as the different responsibilities of each party and outlining, from the perspective of personal data protection, the scope of their respective processing.

In particular, the competent physician, within the scope of their health surveillance activities, is the only subject authorized to process the health data of workers and to verify their suitability for the "specific task" (Articles 25, 39, paragraph 5, and 41, paragraph 4, Legislative Decree No. 81/2008). The employer, being able to know only the judgment of suitability for the specific task and any prescriptions set by the competent physician as working conditions, implements the measures indicated by the competent physician and, if a judgment of unsuitability for the specific task is expressed, assigns the worker, where possible, to equivalent or lower duties, ensuring treatment corresponding to the previous duties (Article 42 Legislative Decree No. 81/2008).

In the specific context related to the epidemiological emergency from SARS-CoV-2, the aforementioned Decree-Law No. 44/2021 (converted into Law No. 76 of May 28, 2021, and remained in force until November 1, 2022 (Articles 4 and 4-bis, paragraph 1 of Decree-Law 44/2021, as amended by Article 7, paragraph 1, letter b), Decree-Law of October 31, 2022, No. 162, converted, with modifications, by Law No. 199 of December 30, 2022), introduced a procedure aimed at verifying compliance with the vaccination obligation initially only for healthcare professionals and operators of health interest.

The number of categories of workers subject to the vaccination obligation has been progressively expanded by numerous legislative interventions that have followed over time, through which the procedures related to the verification of compliance with the vaccination obligation have also been modified, both concerning the subjects responsible for the verification and regarding the timing and methods of the same (see Decree-Law No. 172 of November 26, 2021, converted with modifications by Law No. 3 of January 21, 2022, Decree-Law No. 24 of March 24, 2022, Decree-Law No. 162 of October 31, 2022).

The wording of Article 4 of Decree-Law 44/2021 in force at the time the events in question occurred (August 2021) provided that within 5 days from the entry into force of the decree: "(...) the employers of healthcare operators who carry out their activities in public or private healthcare, (social-health and social-assistance) facilities, (in pharmacies, in para-pharmacies) and in professional studios shall transmit the list of their employees with such qualifications, indicating their respective place of residence, to the region or autonomous province in whose territory the (same employees) operate" (Article 4, paragraph 3). "Within ten days from the date of receipt of the lists referred to in paragraph 3, the regions and autonomous provinces, through the vaccination information services, shall verify the vaccination status of each of the subjects included in the lists. When the vaccination against SARS-CoV-2 has not been recorded in the vaccination information systems available to the region and the autonomous province, or the request for vaccination has not been submitted in the manner established within the ongoing vaccination campaign, the region or autonomous province, in compliance with the provisions on personal data protection, shall immediately report to the local health authority of residence the names of the subjects who are not vaccinated" (Article 4, paragraph 4).

Following all the checks carried out, the competent local health authority, having established the non-compliance with the vaccination obligation, "shall immediately notify the interested party, the employer, and the relevant professional Order in writing" (paragraph 6). "The employer shall assign the worker, where possible, to duties, even lower, different from those indicated in paragraph 6, with treatment corresponding to the duties exercised, and which, in any case, do not involve risks of contagion spread" (paragraph 8).

That said, it is noted that the Care Home has declared that it activated the procedure referred to in Decree-Law 44/2021, communicating to the competent Local Health Authority the list of names of its employees subject to the vaccination obligation and that it received communication regarding non-compliant healthcare personnel (i.e., doctors and nurses) but not also regarding operators of health interest.

In this regard, it should be noted that, during the investigation, no documentation was provided to support this declaration, despite the explicit request in this regard from the Authority, so it is not possible to ascertain that the employer actually communicated the name of the complainant to the Local Health Authority for the relevant assessments. It is established, in any case, that the Care Home became aware of the vaccination status of its employee without having received from the competent bodies the act of ascertaining the non-compliance with the vaccination obligation, according to the procedure indicated in Article 4, paragraph 6, of Decree-Law 44/2021 (see notes of 01/04/2023 and 03/08/2023).

The fact that the certificate of unsuitability was transmitted by the competent physician without an explicit request being made is of no relevance, since the employer, having become aware of the vaccination status of its employee, processed the related information and took action based on it. has derived a suspension order. For this reason, the processing of data related to the claimant's vaccination status has been carried out in violation of the regulations on personal data protection, which generally prohibits the processing of so-called special data (including those related to health status, Article 9, paragraph 1, of the Regulation). The exemption for the processing of special categories of data applies only in the cases explicitly provided for in Article 9, paragraph 2, of the Regulation itself and has not been affected by the emergency legislation resulting from the Covid-19 epidemiological emergency.

In particular, within the employment relationship, the exemption to the prohibition on processing so-called special data is provided in the case of "processing necessary to fulfill the obligations and exercise the specific rights of the data controller or the data subject in the field of labor law and social security and social protection, insofar as it is authorized by Union law or the laws of the Member States (...)" (Article 9, paragraph 2, letter b) of the Regulation).

Therefore, considering that the provisions set forth by DL 44/2021 constituted the legal basis for the processing operations of so-called special data carried out to fulfill the obligations of the data

controller, the failure to comply with the procedure for verifying non-compliance with the vaccination obligation expressly provided by law has consequently rendered the processing carried out by the Care Home unlawful.

3. Conclusions: unlawfulness of the processing carried out. In light of the evaluations that precede, it is noted that the statements made by the data controller in the defense writings – the truthfulness of which may be subject to accountability under Article 168 of the Code – do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to permit its archiving, as none of the cases provided for in Article 11 of the Garante Regulation No. 1/2019, concerning internal procedures of the Authority with external relevance, apply.

The processing of personal data carried out by the Care Home is indeed unlawful, as stated above, since it was carried out in violation of Article 9, paragraph 2, of the Regulation.

4. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions. The Garante, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for in Article 83, paragraph 5, of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of so-called special data concerning the claimant, the unlawfulness of which has been established as stated above.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be “effective, proportionate, and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, gravity, and duration of the violation, the nature of the violation was considered relevant, as it involved only one data subject but required an assessment of the personal aspects of the data subject;
- the absence of previous relevant violations committed by the data controller;
- the category of personal data affected by the violation;
- the complexities associated with the application of the regulations in the emergency context.

In consideration of the aforementioned principles of effectiveness, proportionality, and dissuasiveness (Article 83, paragraph 1, of the Regulation) to which the Authority must adhere in determining the amount of the sanction, the economic conditions of the offender have been taken into account, determined based on the income declaration for the year 2022.

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to set the amount of the pecuniary sanction at €4,000.00 (four thousand) for the violation of Article 9, paragraph 2, of the Regulation.

In this context, it is considered that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this section containing the injunction order on the Garante's website should proceed. This is in consideration of the nature of the processing and the context in which the violation occurred.

ALL OF THE ABOVE HAVING BEEN STATED, THE Garante declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out by the Care Home “Pietro Zangheri”, Tax Code 80007190400, located in Forlì, via P.F. Andrelini No. 5, represented by the legal representative pro tempore, in the terms stated in the motivation, for the violation of Article 9, paragraph 2, of the Regulation;

ORDERS the Care Home “Pietro Zangheri”, pursuant to Article 58, paragraph 2, letter i), of the Regulation, to pay the sum of €4,000.00 (four thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

COMMANDS the same to pay the sum of €4,000.00 (four thousand) according to the methods

indicated in the attachment, within 30 days from the notification of this.

****Provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981.****

It is represented that pursuant to Article 166, paragraph 8 of the Code, the possibility remains for the offender to settle the dispute by means of payment – always according to the methods indicated in the annex – of an amount equal to half of the imposed sanction within the term provided for in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, as indicated below for the submission of the appeal.

****ORDERS****

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of the injunction order on the Garante's website;

pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Garante Regulation No. 1/2019, the publication of this provision on the website of the Authority;

pursuant to Article 17 of Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree 150/2011, an appeal against this provision may be made to the ordinary judicial authority, with a petition filed at the ordinary court of the place identified in the same Article 10, within 30 days from the date of communication of this provision, or 60 days if the appellant resides abroad.

Rome, November 14, 2024

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Ghiglia

****THE SECRETARY GENERAL****

Mattei